

24STCV32549 24STCV32549

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV32549 Hearing Date: July 9, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV32549

PETER

BENJAMIN, JR. vs PLYMOUTH ROCK HOMEOWNERS ASSOCIATION

July

9, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF AND CROSS-DEFENDANT PETER BENJAMIN, JR.'S MOTION TO DEEM REQUEST FOR ADMISSIONS, SET ONE, TO PLYMOUTH ROCK HOMEOWNERS' ASSOCIATION ADMITTED AND REQUEST FOR \$3420.00 IN MONETARY SANCTIONS.

RULING:

The Court denies the
Motion as to deeming admitted and grants it as to sanctions.

On or before August 9,
2026, Defendant PLYMOUTH ROCK HOMEOWNERS' ASSOCIATION and CASTANEDA LAW, APC,
jointly and severally, shall pay discovery sanctions in the sum of \$3420.00 to Plaintiff
and Cross-Defendant PETER BENJAMIN, JR.

I.

BACKGROUND

The
Court incorporates by reference the Background section of the Minutes entered
on June 10, 2026.

On February 5, 2026, PETER
BENJAMIN, JR. (Plaintiff) filed the Motion to Deem Admitted Request for
Admissions, Set One, because PLYMOUTH ROCK HOMEOWNERS' ASSOCIATION (Defendant) failed
to timely serve verified responses.

Defendant opposes, arguing
that admission responses, without objections, have been served before the
hearing.

II.

LEGAL STANDARD

"[A] motion to have
admission requests deemed admitted may not be granted where the record
establishes ... that (1) proposed responses to the requests have been served
prior to the hearing on the motion and (2) such responses are in substantial
compliance with the provisions of section 2033, subdivision (f)(1)." (Tobin v. Oris (1992) 3 Cal.App.4th 814,
828, overruled on other grounds by Wilcox v. Birtwhistle (1999) 21 Cal.4th
973, 983, fn.12.) Courts evaluate tardy responses to requests for admissions,
in toto, to determine whether they substantially comply with the code, and do
not evaluate each individual response. (St.
Mary v. Superior Court (2013) 223 Cal.App.4th 762, 779-780.)

III.

ANALYSIS

Plaintiff requests an Order deeming admitted Requests for Admission, and imposing monetary sanctions, because Defendant failed to timely serve verified responses.

On June 25, 2026, Defendant filed the Declaration of Allison O'Day, with exhibits, evidencing that admission responses, without objections, ultimately were served.

“Under Code of Civil Procedure section 2033.280, it is mandatory that the court impose a monetary sanction on the party or attorney whose failure to serve a timely response to a request for admission necessitates a motion to compel responses....” (Stover v. Bruntz (2017) 12 Cal.App.5th 19, 31–32. Accord, Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 635.)

The Court finds that the responses attached to the back of that Declaration are in substantial compliance with the California Discovery Act.

Thus, the Court is not statutorily authorized to deem the requests admitted. However, discovery sanctions are statutorily mandated.

IV.

CONCLUSION

The Court denies the Motion as to deeming admitted and grants mandatory sanctions applicable to untimely admission responses.